



**Order under Section 69
Residential Tenancies Act, 2006**

Citation: Roy v Laro, 2025 ONLTB 96941

Date: 2025-12-18

File Number: LTB-L-092737-25

In the matter of: 1, 740 CHARLOTTE ST
SUDBURY ON P3E4C3

Between: Eric Roy Landlord

And

Shawn Laro Tenant

Eric Roy (the 'Landlord') applied for an order to terminate the tenancy and evict Shawn Laro (the 'Tenant') because the Tenant has been persistently late in paying the Tenant's rent.

The Landlord also claimed compensation for each day the Tenant remained in the unit after the termination date.

This application was heard by videoconference on December 15, 2025. The Landlord's Agent, Heather Gibson, and the Tenant, supported by Roxanne Rose, attended the hearing.

Determinations:

1. As explained below, the Landlord has proven on a balance of probabilities the grounds for termination of the tenancy and the claim for compensation in the application. Therefore, the tenancy shall terminate on January 5, 2026.
2. The Tenant was in possession of the rental unit on the date the application was filed.
3. On August 4, 2025, the Landlord gave the Tenant an N8 notice of termination because the Tenant has persistently failed to pay the rent on the date it was due. The rent has been

paid late 5 times in 2024 between August and December 2024, and 8 times between January and August 2025.

4. The Tenant was required to pay the Landlord \$3,108.60 in daily compensation for use and occupation of the rental unit for the period from November 1, 2025, to December 15, 2025, less any amounts already paid by the Tenant to the Landlord.
5. Based on the monthly rent, the daily compensation is \$69.08. This amount is calculated as follows: $\$2,101.25 \times 12$, divided by 365 days.
6. The Landlord incurred costs of \$186.00 for filing the application and is entitled to reimbursement of those costs.
7. The Landlord collected a rent deposit of \$2,050.00 from the Tenant and this deposit is still being held by the Landlord. Interest on the rent deposit, in the amount of \$160.21 is owing to the Tenant for the period from October 31, 2022, to December 15, 2025.
8. The amount of the rent deposit and interest on the rent deposit is applied to the amount the Tenant is required to pay.
9. I have considered all of the disclosed circumstances in accordance with subsection 83(2) of the *Residential Tenancies Act, 2006* (the 'Act'), and find that it would not be unfair to postpone the eviction until December 31, 2025, pursuant to subsection 83(1)(b) of the Act. The Landlord seeks termination of the tenancy. The Landlord's Agent submits that the Landlord is a member of the Canadian military and is currently deployed. However, his role in the military is in a finance-related position and he is required to have an aboveaverage credit rating. As a result, he has had to borrow funds from others to ensure his credit score is not impacted by the Tenant's late payments. Further, the Landlord's Agent submits the Tenant has not paid rent since August 2024.
10. The Tenant disputes that he has not paid the rent. He explained that it is the Landlord who has refused his payments. Although the Tenant did not provide any evidence to the Board to corroborate this statement, the Landlord did submit banking information. However, the banking information supports the Landlord's assertion that these payments were not made. Each record indicates that the e-transfer was cancelled or was sent to an invalid e-mail address.
11. The Tenant states he made the payments the same way he always had and did not make any changes to the payment information. However, I do not find his evidence to be credible. I say this because the banking records show that a payment made September 3, 2025, and October 4, 2025, were "cancelled." Even if I was to accept that these two payments were refused by the Landlord, the records support the Landlord's position that the payments were still made late. The Tenant had access to a portal for tenants as part of his tenancy. The Landlord submits he could have made payments through the portal. However, the Tenant made no attempts to clarify what e-mail to use or that he attempted to

pay his rent any other way, for example by cheque or money order, to ensure his rent was paid and paid on time.

12. The Tenant states he wishes to preserve his tenancy. He took on two roommates to assist him in making the payments. They pay \$1,200.00 per month. He has a third individual he is expecting to move in who would provide another \$600.00 towards the monthly rent. However, the Tenant's rent is \$2,101.25. The Tenant is not employed and is recovering from an injury. Even if the Tenant has three roommates contributing \$1,800.00 each month, this is still insufficient to pay his rent. Given this, I do not find a conditional order is appropriate, because the Tenant does not have sufficient income to pay the rent. The Tenant is not working and is not able to confidently explain when he would be returning to work.
13. Given all of the above, I am not persuaded that this tenancy is tenable. The prejudice to the Tenant is not outweighed by the prejudice to the Landlord who is required to maintain his credit score to keep his job. However, a brief delay in termination to January 5, 2026, gives the Tenant every opportunity to find alternate accommodations.

It is ordered that:

1. The tenancy between the Landlord and the Tenant is terminated. The Tenant must move out of the rental unit on or before January 5, 2026.
2. If the unit is not vacated on or before January 5, 2026, then starting January 6, 2026, the Landlord may file this order with the Court Enforcement Office (Sheriff) so that the eviction may be enforced.
3. Upon receipt of this order, the Court Enforcement Office (Sheriff) is directed to give vacant possession of the unit to the Landlord on or after January 6, 2026.
4. The Tenant shall pay to the Landlord \$3,108.60, which represents compensation for the use of the unit from November 1, 2025, to January 6, 2026, less any payments already made by the Tenant to the Landlord.
5. The Tenant shall also pay the Landlord compensation of \$69.08 per day for the use of the unit starting December 16, 2025, until the date the Tenant moves out of the unit.
6. The Tenant shall also pay to the Landlord \$186.00 for the cost of filing the application.
7. The Landlord owes \$2,210.21 which is the amount of the rent deposit and interest on the rent deposit, and this is deducted from the amount owing by the Tenant.
8. The total amount the Tenant must pay the Landlord is \$1,084.39, less any amounts already paid by the Tenant to the Landlord.

9. If the Tenant does not pay the Landlord the full amount owing on or before January 5, 2026, the Tenant will start to owe interest. This will be simple interest calculated from January 6, 2026, at 4.00% annually on the balance outstanding.

December 18, 2025

Date Issued

Jane Dean

Member, Landlord and Tenant Board

15 Grosvenor Street, Ground Floor Toronto
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If you have any questions about this order, call 416-645-8080 or toll free at 1-888-332-3234.